

Contentious Chamber

Decision on the merits 117/2024 of September 9, 2024

File number: DOS-2022-04938

Subject: the processing of personal data by a political party to send emails to its own members

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president, and Messrs. Yves Poulet and Dirk Van Der Kelen, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "LCA";

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, hereinafter "the complainant"

The defendants:

non-profit organization A

Defendant 2

non-profit organization B

1 The new internal regulations of the DPA following the amendments made to the LCA by the law of December 25, 2023, amending the law of December 3, 2017, establishing the Data Protection Authority (LCA) came into effect on 01/06/2024.

In accordance with Article 56 of the law of December 25, 2023, it only applies to complaints, mediation files, requests, inspections, and procedures before the contentious chamber initiated from that date:

<https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur-de-l-autorite-de-protection-des-donnees.pdf>

Cases filed before 01/06/2024, such as in this instance, are subject to the provisions of the unamended LCA and the internal regulations as they existed before that date:

<https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur.pdf>.

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I. Facts and procedure

1.

The complainant is a member of the political party (Party A) and its youth section, the Jongerenpartij B. The first defendant is the non-profit organization A, the legal entity behind Party A, and the third defendant is the non-profit organization B, the legal entity behind the Jongerenpartij B. Defendant 2 is also a member of Party A and the Jongerenpartij B and, at the time of the complaint, held the position of provincial president of the Jongerenpartij B for West Flanders.

On October 13, 2022, defendant 2 sent, via her personal email address, an email to the members of the non-profit organization B of West Flanders. She used for this purpose a list of members from West Flanders of the non-profit organization B, which she had received on May 9, 2022, from a collaborator of the non-profit organization A. In the email of October 13, 2022, defendant 2 mentions that the national president of the Jongerenpartij B is stepping down, that an interim president has been appointed, and that applications for the position of national president are open. She also announces her intention to run for the national presidency of the Jongerenpartij B and invites the recipients to support or collaborate with her during her campaign.

On October 24, 2022, the complainant reported to the control committee of the Jongerenpartij B and to the interim president of the Jongerenpartij B that he disagreed with defendant 2's use of the West Flanders member list to send an email related to the electoral campaign. According to the complainant,

this would result in "an unfair advantage compared to other potential candidates who do not have such a list." [Note: all passages from the file cited in this document have been freely translated by the translation service of the Data Protection Authority, in the absence of an official translation.]

He also indicated that a similar incident had occurred previously and that he had reported it at the time to the Data Protection Officer (DPO) of the non-profit organization A. The complainant stated that he received no response to his email of October 24, 2022.

On November 7, 2022, the complainant sent an email to the control committee and to the interim president of the Jongerenpartij B. He reiterated the position of his email of October 24, 2022, adding that both the provision of the member list in question to defendant 2 and its use by her for "personal electoral campaigns" would constitute violations of the GDPR. He indicated that when he registered as a member of Party A, he accepted the privacy statement of that party, but that he had never seen a privacy statement from the Jongerenpartij B. The complainant argued that neither the privacy statement of Party A nor the internal regulations of the Jongerenpartij B provided sufficient information regarding the processing of his personal data.

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The Jongerenpartij B did not authorize defendant 2 to dispose of the address lists and to use them. The non-profit organization B responds on the same day. It asserts that the potential use of an address list from the secretariat "falls into a gray area. Since both candidates have been members of our party for a long time and therefore have many contacts, it is not obvious to determine whether the email addresses were obtained through an address list from the secretariat or through their own address book."

On November 7, 2022, the complainant also sends an email to privacy@[...], broadly repeating the same content as his email addressed to the supervisory committee and the interim president of Jongerenpartij B on the same day. The DPO of non-profit organization A responds on November 15, 2022. He states that for the processing of member data, non-profit organization B relies on non-profit organization A. The DPO further adds that non-profit organization A has a consistent general policy "never to transmit data to other members of our party." He offers to assist the complainant in discovering what happened.

On November 9, 2022, defendant 2 sends an email to the local presidents of Jongerenpartij B in Antwerp regarding the elections for the national presidency of Jongerenpartij B. At the bottom of the email, she mentions that she found the names of the recipients on the Jongerenpartij B website. On the same day, the complainant forwards this email to non-profit organization B, contesting that defendant 2 obtained the data from the website.

On November 10, 2022, the supervisory committee of Jongerenpartij B responds to the complainant's email. It confirms that non-profit organization B indeed needs a separate confidentiality statement and that this point will be addressed. Regarding the use of the email address list by defendant 2, it states that no fault has been committed.

On November 15 and 17, 2022, the complainant reiterates his disagreement with the decision of the supervisory committee of non-profit organization B. The latter responds to both emails indicating that it maintains its position.

2. On December 4, 2022, the complainant files a complaint with the Data Protection Authority against the three defendants. The complainant asserts that defendant 2 could not use the data in question to send an email related to her electoral campaign. The complainant further argues that non-profit organization B does not have a confidentiality statement.

3. On December 9, 2022, the complaint is declared admissible by the First Line Service based on Articles 58 and 60 of the LCA, and the complaint is forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

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4. On December 15, 2022, the Contentious Chamber decides, under Article 95, § 1, 1° and Article 98 of the LCA, that the case can be dealt with on the merits.

5. On December 22, 2022, the concerned parties are informed by registered mail of the provisions as set out in Article 95, § 2 and Article 98 of the LCA. They are also informed, under Article 99 of the LCA,

of the deadlines for submitting their conclusions.

For the findings related to the subject of the complaint, the deadline for receiving the defendant's response conclusions has been set for February 2, 2023, for the complainant's reply conclusions on February 23, 2023, and finally for the defendant's reply conclusions on March 16, 2023.

6. On December 23, 2022, non-profit organization A and non-profit organization B accept all communications related to the case electronically.

7. On December 26, 2022, defendant 2 accepts all communications related to the case electronically.

8. On February 1, 2023, the complainant accepts all communications related to the case electronically.

9. On February 1, 2023, the Contentious Chamber receives the response conclusions from the defendant. As a primary request, defendant 2 asks the Contentious Chamber to attempt mediation to reconcile the parties and as a secondary request, she asks for a dismissal regarding the emails sent on October 13, 2022, and November 9, 2022. She also expresses her desire to exercise the right to be heard, in accordance with Article 98 of the LCA.

10. On February 2, 2023, the Contentious Chamber receives the response conclusions from non-profit organization A and non-profit organization B. Although these conclusions were submitted separately, their content is identical and they are summarized here jointly. As a primary request, defendants 1 and 3 ask the Contentious Chamber to attempt mediation to reconcile the parties and as a subsidiary request, they ask to dismiss the complaint against them or to pronounce a dismissal. They also express their desire to exercise the right to be heard, in accordance with Article 98 of the LCA.

11. On February 23, 2023, the Contentious Chamber receives the reply conclusions from the complainant. As a primary request, the complainant asks the Contentious Chamber to impose an administrative fine on the defendants as well as a temporary limitation on processing until measures are taken to prevent such situations. As a subsidiary request, the complainant asks the Contentious Chamber to impose a temporary limitation on processing and as a further subsidiary request, the complainant asks to order the defendants...

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to bring the processing into compliance with the provisions of the GDPR, and at the very least to issue a reprimand.

12. On March 15, 2023, the Contentious Chamber received the reply conclusions from the non-profit organization A and the non-profit organization B.

13.

On March 15, 2023, the Contentious Chamber received the reply conclusions from the second defendant.

14.

On June 18, 2024, the parties were informed that the hearing would take place on July 2, 2023.

15. On July 2, 2024, the parties were heard by the Contentious Chamber. Although duly summoned, the complainant did not appear. During the hearing, the defendants explained their defense.

16.

On July 4, 2024, the minutes of the hearing were submitted to the defendant. The Contentious Chamber gave them the opportunity to submit any comments until July 17, 2024. On July 17, 2024, the Contentious Chamber noted that no comments had been received regarding the minutes.

II. Reasoning

17. In its letter of December 22, 2022, the Contentious Chamber found that the scope of this case concerned (1) the sending of the email dated October 13, 2022, based on a list of members of the Jongerenpartij B of West Flanders and (2) compliance with transparency and information obligations.

II.1. Regarding the data controller

18. Before addressing the complainant's grievances, the Contentious Chamber examines who is responsible for the processing of data in this case.

19. The GDPR defines a "data controller" as an entity that, alone or jointly with others, determines the purposes and means of processing personal data. The EDPB has clarified that the concept of data controller pertains to the impact of the data controller on data processing, based on decision-making power or control over processing activities. Such control may arise from legal provisions, implicit competence, or be based on factual influence. This examination requires a factual analysis, where

existing regulations are compared to the factual circumstances of the relationship between the parties.

20. In this case, the defendants assert that the processing of personal data in question took place in the context of managing the members of Party A (non-profit organization A) and Jongerenpartij B (non-profit organization B). According to them, the data processing policies of these two defendants are nearly identical since membership in Jongerenpartij B is complementary to membership in Party A and the data is processed for the same purposes, retention periods, and legal bases. Non-profit organization B would have modeled its data management on that of non-profit organization A. A single point of contact is offered for all inquiries, the creation of memberships occurs through the same process, there is a single CRM system, and a single DPO for both defendants. Individuals wishing to become members of Jongerenpartij B are required to first join Party A. This is done via the same membership form, under the same conditions and pursuant to the same privacy statement. Nevertheless, the defendants state that only non-profit organization B is the data controller concerning the processing of data of the members of Jongerenpartij B. Non-profit organization A would act in this regard as a processor.

21. However, the factual circumstances reveal that both non-profit organization A and non-profit organization B determine the purposes and essential elements of the processing of data of the members of Jongerenpartij B. Thus, non-profit organization A and non-profit organization B refer to a regulation that was established "within Party A" (i.e., non-profit organization A) regarding the use of email addresses of members, which would also apply to members of Jongerenpartij B. This regulation determines, among other things, which individuals gain access to the data and to which categories of data subjects the emails may be sent. The Contentious Chamber notes that these means can be considered essential means, the determination of which is intrinsically reserved for the data controller. Furthermore, this strategic document partially defines the purposes for which the data related to the members may be used. Thus, emails from sections addressed more broadly than to their own members must be subject to a request to the provincial president.

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of Party A. Furthermore, the national secretariat (asbl A) has a say regarding the timing of the sending of emails.

22. In practice, the processing of data related to the members of Jongerenpartij B is determined by converging decisions of asbl B and asbl A, which are complementary and necessary for the processing, such that both have a tangible influence on the determination of the purposes and means of the processing. Regarding the data of the members of Jongerenpartij B, the processing activities carried out by asbl A and asbl B are inextricably and indissolubly linked.

23. Based on the above, the Contentious Chamber concludes that asbl A and asbl B exert decisive influence on the determination of the means and purposes, such that these two entities are joint controllers of the processing concerning the processing of personal data of the members of Jongerenpartij B.

24. The Contentious Chamber further considers that Defendant 2 cannot be personally qualified as a controller concerning the processing that falls within the scope of this procedure. Although there are no restrictions regarding the type of entity authorized to fulfill the role of controller, it is generally the organization itself in practice and not an individual within the organization. Collaborators who have access to personal data are generally considered as "persons acting under the authority of the controller or the processor" within the meaning of Article 29 of the GDPR. However, in exceptional circumstances, it may happen that a collaborator uses personal data for their own purposes, thereby illegally exceeding the rights granted to them. In such cases, the collaborator is considered the controller since they determine the purpose and means of the processing themselves. In the present case, Defendant 2 was not a collaborator but rather a person belonging to the organization of asbl B, so the previous considerations apply *mutatis mutandis*. Despite her role as provincial president, Defendant 2 does not appear to have participated in the determination of the purposes and means of the processing (see point 21). The Contentious Chamber further considers that Defendant 2's use of the list of members of Jongerenpartij B for sending the email on October 13, 2022, is in accordance with the purposes and means defined by asbl A and asbl B. Defendant 2 indeed claims that her email of October 13, 2022, was necessary in the context of her role as provincial president of the

9 See point II.5 of this decision regarding processing that exceeds the scope of this decision.

10 EDPB Guidelines 07/2020, point 17.

11 EDPB Guidelines 07/2020, point 19.

12 EDPB Guidelines 07/2020, point 19.

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Youth Party B in order to inform its members of her ambitions to become national president. If she were elected to this position, she could no longer continue to serve as provincial president. The Disciplinary Chamber follows this reasoning but notes, however, that Defendant 2 violated the internal policy of the organization by directly using email addresses without the intervention of the secretariat. However, Non-Profit Organization A and Non-Profit Organization B do not indicate that Defendant 2 had determined the purposes and means of processing herself and must therefore be considered responsible for the processing. Furthermore, when sending her email on October 13, 2022, Defendant 2 was assisted by a collaborator from Non-Profit Organization A who had provided her with the data in question. The Disciplinary Chamber believes it is the duty of the organization, as the data controller, to implement appropriate technical and organizational measures, such as training and informing collaborators, to ensure compliance with the GDPR (see section II.3 of this decision).

II.2. Regarding the principle of lawfulness (Article 5.1.a) of the GDPR) when sending the email on October 13, 2022

II.2.1. Position of the parties

25. The complainant does not oppose Defendant 2 sending emails based on member lists. As provincial president of Youth Party B for West Flanders, she had, according to the complainant, the right to access this data. However, he notes that Defendant 2 committed 2 violations of Articles 5.1.a) and b) and 6.1 of the GDPR by using data for the purposes of a "personal electoral campaign." Indeed, there would have been no legal basis allowing Defendant 2 to process personal data in order to send the email in question. Given that at the time of the complaint, Non-Profit Organization B did not have a privacy statement, the complainant asserts that he could not have given consent in accordance with Article 6.1.a) of the GDPR. He further argues that emails related to a campaign or personal candidacy for internal national elections for the presidency are not necessary for the performance of the contract in the context of member management, so that the processing cannot be based on Article 6.1.b) of the GDPR either. According to the complainant, legitimate interest (Article 6.1.f) of the GDPR) also does not constitute a valid legal basis for sending personalized emails, as such sending is particularly intrusive and his fundamental rights and freedoms prevail.

13 The defendants indeed raise this argument regarding Defendant 2's use of publicly available email addresses to send an email on November 9, 2022, to the presidents of the local sections of Youth Party B in the province of Antwerp. This element is not addressed in this decision as it exceeds the scope of the case.

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26. Non-Profit Organization A, Defendant 2, and Non-Profit Organization B state that the processing of personal data of members of Party A and Youth Party B can be based on Article 6.1.b) of the GDPR and on Article 9.2.d) of the GDPR as it concerns a special category of personal data. They further assert that Defendant 2, as president at the time of Youth Party B for West Flanders, was authorized to access the membership data of her own group of members. According to them, a president must know the members and be able to address them. She would have used the email addresses primarily to contact her members directly. According to the defendants, this follows from the usual functioning of a member association such as Youth Party B.

II.2.2. Opinion of the Disciplinary Chamber

27. The Disciplinary Chamber believes that in this case, Article 6.1.b) of the GDPR cannot be invoked as a valid legal basis. This article provides a legal basis for the processing of personal data if "the processing is necessary for the performance of a contract to which the data subject is a party or for the performance of pre-contractual measures taken at the request of the data subject." A valid recourse to this legal basis therefore requires that the processing be necessary for the performance of a specific

contract with the data subject. However, the defendants do not submit any contract for which the disputed processing would be necessary.

28. Non-Profit Organization A and Non-Profit Organization B have therefore violated Articles 5.1.a) and 6.1 of the GDPR by invoking an invalid legal basis.

29. However, the Disciplinary Chamber does not conclude that there is no appropriate legal basis for the present processing of personal data.

30. The Disciplinary Chamber considers that it is possible to invoke Article 6.1.f) of the GDPR, under which processing is lawful if it is necessary for the purposes of the legitimate interests pursued by the data controller, unless the interests or fundamental rights and freedoms of the data subject requiring protection of personal data prevail.

31. According to the case law of the Court of Justice of the European Union, three cumulative conditions must be met for a data controller to validly invoke this legal basis in law. It must be able to demonstrate (1) that the interests it pursues with the processing can be recognized as legitimate (the "purpose test"); (2) that the processing envisaged is necessary for the realization of those interests (the "necessity test"); and (3) that the balancing of these interests against the interests,

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Fundamental freedoms and rights of the data subjects weigh in favor of the data controller or a third party (the "balancing test")¹⁴.

32. First, the Contentious Chamber considers that the purpose of informing the members of a political party about developments within the party constitutes a legitimate interest. The first condition set out in Article 6.1.f) of the GDPR is therefore met. To fulfill the second condition, it must be demonstrated that the processing is necessary for the achievement of the pursued purposes. In this case, the use of email appears necessary to reach all members in order to inform them of developments within the party. Finally, it is necessary to assess through the "balancing test" whether "the data subject can reasonably expect, at the time and in the context of the collection of personal data, that such data will be processed for a specific purpose"¹⁵. The Contentious Chamber believes that the sending of emails by a political organization such as non-profit organization B to its own members to inform them of developments within the organization is part of the reasonable expectations of the members, given their membership. This also applies to the use of their own member lists for electoral purposes, as established in the note on the processing of personal data in the context of elections¹⁶.

33. Based on the above, the Contentious Chamber concludes that under Article 6.1.f) of the GDPR, non-profit organization A and non-profit organization B may process the data of their own members to send them emails such as the email dated October 13, 2022.

34. However, the Contentious Chamber reiterates that non-profit organization A and non-profit organization B have violated Articles 5.1.a) and 6.1 of the GDPR by improperly invoking Article 6.1.b) of the GDPR.

35. Furthermore, it is relevant to note that, as also pointed out by non-profit organization A and non-profit organization B, the personal data processed in the context of membership in political organizations such as Party A and Youth Party B are data that reveal the political opinions of the data subjects. This data falls under the special categories of personal data whose processing is generally prohibited under Article 9.1 of the GDPR, unless one of the exceptions listed in Article 9.2.a) j) of the GDPR applies. In this case, non-profit organization A and non-profit organization B invoke the exception set out in Article 9.2.d) of the GDPR, which defines an exception for the processing of data of members or former members of a foundation, association, or any other non-profit organization pursuing a political purpose, or of persons maintaining a relationship with that organization.

¹⁴ Judgment of the Court (Second Chamber) of May 4, 2017, Case C-13/16, Valsts policijas Rīgas reģiona pārvaldes Kārķības policijas pārvalde v. Rīgas pašvaldības SIA "Rīgas satiksme", para. 28.

¹⁵ Recital 47 of the GDPR.

¹⁶ Consultable via the following link: <https://www.autoriteprotectiondonnees.be/publications/note-sur-le-traitement-des-donnees-dans-le-cadre-des-elections.pdf>, p. 7.

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regular contacts in connection with its purposes. ¹⁷ The Disciplinary Chamber considers that this

exception indeed applies in the present case.

II.3. Regarding the principles of integrity and confidentiality (5.1.f) of the GDPR) during the direct transmission of member lists to Defendant 2

36. The Disciplinary Chamber must then assess whether the data controllers have respected the principle of integrity and confidentiality in accordance with Article 5.1.f) of the GDPR.

II.3.1. Position of the Parties

37. In their submissions, the defendants state that on May 9, 2022, Defendant 2 received an export of the file containing all members of the Jongerenpartij B of West Flanders from a collaborator of the non-profit organization A. The email dated October 13, 2022, was sent based on this member list.

38. The complainant asserts that non-profit organizations A and B did not take sufficient measures to secure personal data, which he claims constitutes a violation of Articles 32.1 and 32.4 of the GDPR. He points out that the regulation of non-profit organization A regarding the use of members' email addresses stipulates that section presidents do not have direct access to the email addresses of members and that email communications must be conducted through the secretariat¹⁸. Nevertheless, he received the email dated October 13, 2022, from the personal email address of Defendant 2. The complainant adds that on December 26, 2021, he had already received an email from the personal email address of a candidate in the internal elections of Party A for West Flanders, which he reported to the DPO of non-profit organization A. He claims that the email addresses of members have been transmitted multiple times to candidates in the context of internal electoral campaigns. The complainant states that his notification was not followed by sufficient measures. He claims to have received several emails from Defendant 2 since November 2021, which he believes demonstrates that Defendant 2 already had a member list before the aforementioned collaborator communicated an excerpt from the member file to her.

39. Non-profit organizations A and B assert that they have taken sufficient measures to ensure the security of members' data. The current CRM system is said to have been developed with a focus on security and privacy protection from the design stage (privacy by design). The defendants further argue that their collaborators are bound by an annex to the

17 "the processing is carried out, in the context of their legitimate activities and with appropriate safeguards, by a foundation, an association, or any other non-profit organization pursuing a political, philosophical, religious, or trade union purpose, provided that such processing relates exclusively to the members or former members of that organization or to persons maintaining regular contacts with it in connection with its purposes and that the personal data are not communicated outside of that organization without the consent of the persons concerned;."

18 Exhibit 3 of the summary conclusions of defendants 1 and 3.

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regulation

of

work,

entitled

"Privacy Clause

General

Data Protection Regulation"¹⁹ (Confidentiality Clause General Data Protection Regulation), which governs how they must process personal data in the performance of their duties. Furthermore, all employees are bound by a confidentiality agreement²⁰ and receive training that includes awareness of the principles of the GDPR²¹. Additionally, a regulation has been developed within Party A regarding the use of members' email addresses²², which also applies to non-profit organization B. This regulation stipulates that section presidents do not have direct access to members' email addresses and that email communications must go through the secretariat. The defendants attribute the transmission of the email address list to defendant 2 to an error by the concerned employee, who thus violated internal policy.

II.3.2. Assessment by the Disciplinary Chamber

40. Article 5.1.f) of the GDPR prescribes that "[personal data] must be processed in a manner that

ensures appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures.”

41. In continuation of Article 5.1.f) of the GDPR, Article 32.1 of the GDPR states that the data controller must implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk. In this regard, account must be taken of the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the likelihood and severity of the risks posed by the processing to the rights and freedoms of individuals.

42. Article 32.2 of the GDPR states that when assessing the appropriate level of security, account must be taken of the risks presented by the processing, resulting in particular from the destruction, loss, alteration, unauthorized disclosure of personal data transmitted, stored, or otherwise processed, or from unauthorized access to such data, whether accidental or unlawful. In this context, the Disciplinary Chamber observes that the personal data in question may be classified as special categories of personal data. Membership in Party A and Youth Party B indeed constitutes personal data that can reveal the political opinions of members. Therefore, this data is particularly sensitive and requires enhanced protection.

43. The Disciplinary Chamber acknowledges that the defendants have taken measures to ensure the security of personal data. This is evidenced in particular by the "Privacy Clause General Data Protection Regulation" and the confidentiality agreement binding all employees. Furthermore, all employees receive training that also addresses the principles of the GDPR, and an internal policy has been developed to limit access to members' email addresses. It has been decided that section presidents would not have direct access to members' email addresses. Nevertheless, an incident occurred when an employee transmitted the membership lists to defendant 2, who used the email addresses without the intervention of the secretariat. This indicates a gap in the control of compliance with the measures taken by non-profit organization A and non-profit organization B.

44. The Disciplinary Chamber reiterates that an employee may be considered the data controller if they transgress the authority granted to them and use personal data for their own purposes. This is not the case here, as the concerned employee believed they were using the data for the purposes determined by non-profit organization A and non-profit organization B, despite the violation of internal policy. It is the responsibility of the organization, as the data controller, to implement appropriate technical and organizational measures, such as adequate training and information for employees, to ensure compliance with the GDPR.

45. For the above reasons, the Disciplinary Chamber finds that non-profit organization A and non-profit organization B have violated Article 5.1.f) of the GDPR, read in conjunction with Articles 24.1 and 32 of the GDPR, by failing to take sufficient technical and organizational measures.

II.4. Regarding transparency and information obligations (Articles 12, 13, and 14 of the GDPR)

46. The complainant states that non-profit organization B has violated Articles 12, 13, and 14 of the GDPR because at the time of the complaint, it did not have a privacy policy. As a result, the complainant was never informed of the processing of their personal data by non-profit organization B and did not give consent to this processing. The fact that non-profit organization A did have a privacy statement does not change this. To support their position, the complainant presents an email from the oversight committee of Youth Party B dated November 10, 2022. In this email, the oversight committee acknowledges that Youth Party B needs a separate privacy statement. Furthermore, the oversight committee

23 EDPB Guidelines 07/2020, point 19.

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would have learned from the board of the Jongerenpartij B that the absence of a privacy statement would be addressed.

47. The non-profit organization A and the non-profit organization B, on the other hand, assert in their summary conclusions that non-profit organization B has indeed complied with its obligations of transparency and information regarding the processing of personal data of its members. They claim that the data management and privacy protection policy of non-profit organization B is entirely inspired by that of non-profit organization A. The latter would have published a privacy statement on its

website.

48. During the hearing on July 2, 2024, the secretariat of the Contentious Chamber demonstrated that the hyperlink "Privacyverclaring" (privacy statement) on the website of Jongerenpartij B leads the user to the privacy statement of the website of Party A. This privacy statement mentions the following: "This privacy statement governs the processing of your personal data by the data controller: Party A, represented by non-profit organization A" and "The data controller of your personal data is Party A." [Note: free translation made by the Translation Service of the Data Protection Authority, in the absence of an official translation]. The Contentious Chamber asked the defendants to provide further explanations on this matter. They acknowledged that the privacy statement is indeed not found on the website of Jongerenpartij B, but that a click on a link leads to the website of Party A. They justify this by arguing that the processing of personal data is identical in both cases, except regarding visits to the building, as these are not updated by non-profit organization B. For member management, the processing is *mutatis mutandis* the same. The data processing related to the website is entirely carried out under the same domain by non-profit organization A. The defendants acknowledge that it would be more transparent to refer, where relevant, to non-profit organization B in the privacy statement, given that it is a different legal entity and a different data controller. However, the other information, including that related to the exercise of the rights of the data subjects, would remain unchanged.

II.4.1. Opinion of the Contentious Chamber

49. Transparency is crucial to give data subjects control over their personal data and to ensure effective protection of personal data. Under Article 12.1 of the GDPR, it is the responsibility of the data controller to take appropriate measures to provide data subjects with all information referred to in Articles 13 and 14 of the GDPR in a concise, transparent, understandable, and easily accessible manner, using clear and plain language, and this in writing or by other means, including electronic means.

50. The GDPR specifies the categories of information that must be provided to a data subject regarding the processing of their personal data, both when collected from the data subject themselves and when obtained from another source. The Contentious Chamber draws attention to the fact that Article 13.1.a) of the GDPR requires the data controller to provide the data subject, at the time when the data in question is obtained, with the identity and contact details of the data controller. In the aforementioned privacy statement, only Party A and non-profit organization A are designated as data controllers. Non-profit organization B is not referred to as a data controller. For data subjects reading in the privacy statement that it concerns the processing of personal data by non-profit organization A as the controller, it is not evident that the same privacy statement applies to the processing of personal data by non-profit organization B as the data controller. Consequently, data subjects are not transparently informed about the processing of their personal data.

51. Based on the above, the Contentious Chamber finds that non-profit organization B has not complied with its obligations of transparency and information in accordance with Articles 12 and 13.1.a) of the GDPR. Since the personal data was collected from the data subject (during registration as a member of Party A and Jongerenpartij B), Article 14 of the GDPR does not apply.

II.5. Regarding the principle of lawfulness (Article 5.1.a) of the GDPR) when sending the email of November 9, 2022, by defendant 2

II.5.1. Position of the parties

52. The complainant states that when sending his email on November 9, 2022, defendant 2 unlawfully used his personal data. According to the complainant, this email could not fall under legitimate interest (Article 6.1.f) of the GDPR), and the processing was therefore unlawful. However, he acknowledges in his conclusions that this point was not explicitly part of the initial complaint as submitted to the DPA.

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53. Defendant 2 argues that for her email dated November 9, 2022, she was authorized, based on Article 6.1(f) of the GDPR and Article 9.2(d) of the GDPR, to use the email addresses she had collected from the Internet, as conducting her own campaign constitutes a legitimate interest for the candidate. She claims that the processing was appropriate and necessary, and that the interests of the data subjects had been balanced against her legitimate interests. Finally, she emphasizes that she added an explanation at the bottom of the email regarding the source of the data and the possibility of

having it deleted.

54. Defendants 1 and 3 state that the processing of personal data related to the email of November 9, 2022, is entirely the responsibility of Defendant 2.

II.5.2. Opinion of the Dispute Chamber

55. The Dispute Chamber notes that Defendant 2's email of November 9, 2022, was not part of the initial complaint, which the complainant also acknowledged in his conclusions. Therefore, the Dispute Chamber established on December 22, 2022, that the scope of this case was thus limited to the sending of an email based on a list of members that Defendant 2 would have had in her possession, and not to the use by Defendant 2 of publicly available email addresses for her email of November 9, 2022.

56. Given that it exceeds the scope of the present procedure, the Dispute Chamber does not examine the merits of this aspect. However, it considers it appropriate to remind the parties that contact details from public sources were likely not originally published for electoral purposes. The use of this data for electoral purposes may therefore constitute a violation of the principle of purpose limitation, which establishes that personal data must be collected for specified, explicit, and legitimate purposes and cannot be further processed in a manner incompatible with those purposes²⁹.

III. Publication of the Decision

57. Given the importance of transparency regarding the decision-making process of the Dispute Chamber, this decision is published on the website of the Data Protection Authority. However, it is not necessary for this purpose that the identifying data of the parties be directly disclosed.

29 Data Protection Authority, March 2024, Processing of personal data for the purposes of personalized electoral propaganda mailings and respect for citizens' privacy: fundamental principles, available via this link: <https://www.autoriteprotectiondonnees.be/publications/note-sur-le-traitement-de-s-donnees-dans-le-cadre-des-elections.pdf>.